

Business and Professions Code section 17200 prohibits “unfair competition,” which is defined to include “any unlawful, unfair or fraudulent business act or practice” and “unfair, deceptive, untrue or misleading advertising” and any act prohibited by Bus. & Prof. Code § 17500. Causes of actions based on “unlawful” conduct may be based on violations of other statutes. (*See Klein v. Chevron U.S.A., Inc.* (2012) 202 Cal.App.4th 1342, 1383.)

Once again, Plaintiff failed to present any evidence of any wrongful actions whatsoever. Accordingly, Plaintiff failed to meet this burden.

5th Cause of Action for Misappropriation of Trade Secrets

The court finds that this cause of action is not based on any protected conduct. While the fifth cause of action for misappropriation of trade secrets contains an allegation which reads “Plaintiff re-alleges and incorporates by reference each and every preceding paragraph”, it is clear from this cause of action that it is based solely on unprotected conduct: “Plaintiff maintained confidential and proprietary client information and lists constituting trade secrets under Civil Code §3426.1(d).” (Compl., ¶ 32). “Defendant misappropriated such trade secrets by using and disclosing them to solicit Plaintiff’s clients and benefit a competing enterprise.” (Compl., ¶ 33). Therefore, Defendant has not established its burden as to the fifth cause of action.

Accordingly, the court strikes the following:

Paragraph 9 of the Complaint;

Paragraph 13 of the Complaint;

The following from Paragraph 17 of the Complaint: “and by making disparaging statements harming Plaintiff’s business”; and

The following from Paragraph 25 of the Complaint: “and that Plaintiff mistreated its employees”.

Finally, Defendant is granted attorneys’ fees in the reduced amount of \$10,215.

Defendant shall give notice.

12	Amaya vs. Kim	TENTATIVE RULING: <u>Motion for Judgment on the Pleadings</u> Defendant Evelyn Kim moves for judgment on the pleadings as to Plaintiffs Declan Matthew Doherty and Olivia Marie Doherty. For the following reasons, the motion is DENIED as moot. Pursuant to Code of Civil Procedure section 438, subdivision (b)(1), a party may move for judgment on the pleadings. A defendant may move for a judgment on the pleadings on the ground that the complaint does not state facts sufficient to constitute a cause of action against that defendant. (Code Civ. Proc., § 438, subd. (c)(1)(B).) The grounds for a motion for judgment on the pleadings “shall appear on the face of the challenged pleading or from any matter of which the court is required to take judicial notice. Where the motion is based on a matter of which the court may take judicial notice pursuant to Section 452 or 453 of the Evidence Code, the matter shall be specified in the notice of motion, or in the supporting points and authorities, except as the court may otherwise permit.” (Code Civ. Proc., § 438, subd. (d); see, <i>Burnett v. Chimney Sweep</i> (2004) 123 Cal.App.4th 1057, 1063 [Subject to certain exceptions, extrinsic evidence should not be considered in a motion for judgment on the pleadings.].) Defendant contends that Plaintiffs Declan Matthew Doherty and Olivia Marie Doherty are minors but no guardian ad litem has been appointed to represent either of these Plaintiffs as required by California Code of Civil Procedure section 372. Thus, Defendant concludes that these Plaintiffs lack capacity to maintain this lawsuit and judgment on the pleadings should be entered as to these Plaintiffs. However, on May 14, 2026, the Court entered two Orders appointing Plaintiff Angie Marie Amaya as the guardian ad litem for Plaintiff Olivia Marie Doherty and Plaintiff Declan Matthew Doherty. (ROAs 96, 97.) Thus, the motion is moot. Moving Defendant shall give notice of this ruling.
13	Nakano vs. Binder	OFF CALENDAR
14	Spears vs. The Moore Law Group	OFF CALENDAR